

Strategic Legal and Administrative Analysis: Vindicating Disability Rights, Mandated Reporting Obligations, and Data Access within An Garda Síochána

1. Executive Synthesis of Evidentiary Materials and Core Messages

An exhaustive and granular review of the provided evidentiary corpus reveals a sustained pattern of administrative obstruction, diagnostic overshadowing, and systemic friction between a citizen possessing verified complex disabilities and An Garda Síochána, specifically within the Galway Division. The materials demonstrate a critical intersection between the claimant's attempts to fulfill civic and mandated reporting duties and the State's failure to provide reasonable accommodations under equality legislation. The core messages extracted from the provided documentation establish the foundational arguments for subsequent legal and administrative remedies, necessitating a profound shift from a criminal justice perspective to a disability rights and human rights framework.

The documentary evidence requires a multi-layered analysis, dissecting clinical realities, historical interactions, and the administrative mechanisms utilized by law enforcement to process or suppress civic engagement. The synthesis of these documents forms the bedrock of the legal demands articulated later in this report.

1.1 Clinical Baseline and Disability Manifestation

The document titled *Disability Allowance Application Assistance.pdf* serves as the definitive clinical baseline for the claimant's requests.¹ The core message of this document is the systematic refutation of endogenous psychiatric labels—such as schizoaffective disorder or bipolar psychosis—in favor of verified, trauma-based, and iatrogenic organic conditions. The document outlines a history of severe psychosocial abuse and structural biomechanical trauma, establishing specific, codifiable diagnoses that mandate legal accommodation. The clinical reality of the claimant is anchored in several distinct pathological frameworks. Complex Post-Traumatic Stress Disorder (C-PTSD), coded under ICD-10 F43.12, validates the exogenous origin of the claimant's psychological distress.¹ This condition is characterized by profound hyperarousal, active vigilance, and adrenalized survival responses (fight, flight, or freeze), which biologically biased clinicians routinely mistake for manic cycling.¹ Furthermore, the document highlights catastrophic iatrogenic harm, specifically iatrogenic Myoclonic Seizures (ICD-10 G25.3). This diagnosis documents severe central nervous system sensitization and involuntary motor discharges resulting from prior neuroleptic toxicity, directly indicting the

prior administration of contraindicated psychopharmacological interventions.¹

Beyond the neurological and psychological trauma, the document establishes severe structural trauma. Cervicothoracic Spinal Spondylosis (ICD-10 M47.813) and Cervical Disc Displacement (ICD-10 M50.23) identify damage at the C7-T1 fulcrum resulting from flexion-distraction trauma.¹ This validates chronic mechanical pain and structural instability between the shoulder blades, rendering sustained static postures agonizing. Additionally, Temporomandibular Joint (TMJ) Internal Derangement (ICD-10 M26.61) documents the pathological mechanical disruption of the jaw resulting from blunt force trauma.¹

Crucially, the document articulates the forensic concept of the "Outside-In Labeling Fallacy".¹ The mechanical reality of the TMJ fracture forces reflexive masseteric muscle guarding, presenting as a chronically clenched jaw, while cranial nerve damage pulls the face into an involuntary nociceptive reflex.¹ Social observers, including law enforcement and medical clinicians, systematically misinterpret these biological expressions of chronic physical pain as intentional hostility, aggression, or agitation.¹ This epistemic error leads to immediate prejudice and guarantees the unsuitability of unaccommodated, in-person interactions with police personnel, who are frequently untrained in identifying complex trauma presentations. The document also addresses the necessity of "medical exile," wherein the claimant was forced to utilize Common Travel Area (CTA) rights to seek trauma-informed care and legal medical cannabis in the United Kingdom due to systemic diagnostic overshadowing within the Irish Health Service Executive (HSE).¹

1.2 The Disclosure Log and PULSE Misclassification

The *Disclosure - YSESFTJ94C.24* document generated by the Garda Data Protection Unit provides a quantitative timeline of the claimant's extensive history of interactions with the State.¹ The core message of this document is the objective proof of the claimant's persistent civic engagement and victimhood, starkly juxtaposed against the administrative miscategorization of these interactions within police databases.

The log records twenty-six distinct interactions between January 2017 and October 2024. In the vast majority of these incidents, the claimant is listed in a non-culpable capacity. Specifically, the claimant is logged as a "Witness" in twenty-one instances, an "Injured Party" in one instance, and the individual who "Reported by" the incident in six instances.¹ These interactions frequently occurred in connection with "Person Misadventure" or medical emergencies at University Hospital Galway and various locations around Galway City.¹ The court outcomes listed further validate the claimant's status, showing dismissals or strike-outs for minor charges, confirming the absence of a serious criminal record.¹

However, a highly concerning pattern emerges regarding the classification of these incidents. A significant portion of the reports are categorized under the "Attention and Complaints" PULSE category.¹ As detailed in the *Garda Corruption and Data Access.pdf* analysis, the "Attention and Complaints" category is deeply problematic. The Garda Inspectorate has severely criticized this specific classification, noting its frequent utilization as a mechanism to bury legitimate crime reports, artificially lower crime statistics, or record non-criminal "soft intelligence" regarding

citizens.¹ By funneling a citizen's reports of assault, dangerous driving, or public endangerment into the "Attention and Complaints" category, the State effectively neutralizes the report. It is not counted as a crime, it is not investigated as a crime, yet the citizen's name remains permanently attached to a high volume of police records.¹ This administrative reality forms the basis of the claimant's profound distrust of internal Garda systems and underscores the necessity for comprehensive data audits.

1.3 Impediments to Reporting Crime and Garda Omissions

The email threads provided in the evidentiary corpus vividly illustrate the direct, real-world consequences of the State's failure to accommodate the claimant's disabilities. The core message of these communications is the claimant's persistent, desperate attempts to report serious offenses—specifically, the physical abuse of a child in a vehicle and dangerous driving—and the subsequent administrative rejection of these reports based on rigid bureaucratic protocols.

In the document *Re: (External)physical child abuse inside vehicle.pdf*, the claimant explicitly reports witnessing a man driving a white van hitting a child at a roundabout, providing partial license plate details and asserting that the Gardaí are obligated to inform Tusla.¹ In this correspondence, the claimant explicitly requests digital or outdoor accommodations under the Equal Status Act, articulating that their documented C-PTSD, claustrophobia, and myoclonic seizures prevent them from voluntarily entering the confinement of a Garda station.¹ The claimant directly attributes their inability to enter Mill Street Garda Station to previous instances of police brutality, specifically citing a skull injury from June 2019 and a fractured bone from November 2022 caused by a Garda slamming a van door on their leg.¹

The response from the Superintendent of Community Engagement for Galway City encapsulates the administrative failure at the heart of this analysis. The Gardaí acknowledged the email but flatly stated that "Reports of this nature cannot be accepted via email," instructing the claimant to "attend in person at a Garda Síochána station to formally report this matter".¹

This refusal to adapt reporting mechanisms for a disabled witness effectively prioritizes bureaucratic preference over child safety and disability rights.

Further correspondence highlights ongoing allegations of Garda misconduct and intimidation.

In the document *RE: Illegal Garda activity and off the books investigations in Galway*, the claimant alleges that Gardaí have intimidated their grandmother at their residence, refused to properly record valid domestic violence calls, and actively engaged in character assassination by telling family members that the claimant is a criminal.¹ A critical incident is logged on June 30, 2025, where a Garda answering the Mill Street landline allegedly refused to take a message for the Superintendent regarding this intimidation and explicitly refused to provide his identifying badge number.¹ Similarly, correspondence regarding a "Traffic Watch" report outlines disputes over unauthorized Garda vehicles parking on private property and intimidating vulnerable residents.¹

1.4 Accountability, Civil Litigation, and Educational Malpractice

The remaining documentation provides the strategic framework for holding the State and

affiliated institutions accountable. The *Garda Arrest Information for Civil Case.pdf* outlines the mechanisms for overcoming the anonymity of police officers who commit torts against citizens.¹ The core message here is that the withholding of Garda identities under the guise of data protection (GDPR/LED) is frequently an abuse of statute designed to frustrate civil claims for personal injury.¹ The document establishes that statutory instruments, such as the 1987 Custody Regulations, override generic data protection defenses by mandating the unredacted provision of custody records, which inherently contain the names of the "Member in Charge" and the arresting officers.¹

Simultaneously, the *Severe NUIG Educational Malpractice* correspondence demonstrates how unverified Garda intelligence and psychiatric misdiagnoses metastasize across public institutions.¹ The claimant alleges that university administration utilized false psychiatric labels to bypass standard disciplinary procedures, invoking a "Student in Crisis" policy to enact an immediate suspension.¹ This effectively silenced a disabled whistleblower attempting to hold university security accountable, demonstrating how the "Outside-In Labeling Fallacy" is weaponized to exclude traumatized individuals from educational and civic life.

2. The Legality of Ignoring Child Abuse and Misconduct Reports

A central, egregious component of the claimant's grievance is the refusal of An Garda Síochána to action a detailed, contemporaneous report of physical child abuse strictly because it was submitted via email by a disabled witness. The legal framework surrounding child protection, mandated reporting, and police misconduct in Ireland renders this refusal not only administratively deficient but highly precarious under statutory criminal law.

2.1 Statutory Obligations Under the Children First Act 2015

The enactment of the *Children First Act 2015* fundamentally altered the landscape of child protection in Ireland, shifting the paradigm from discretionary, policy-based guidelines to a rigid regime of statutory mandatory reporting.⁵ The legislation is unequivocal in its allocation of responsibility. Under Schedule 2 of the Act, members of An Garda Síochána are explicitly and undeniably designated as "mandated persons".⁷

The Act defines harm to a child as including assault, ill-treatment, neglect, or sexual abuse.⁸ When a citizen—particularly one acting in their capacity as a registered teacher and mandated person—reports that a child has been physically struck in a vehicle, the threshold for a mandated report is unequivocally met. The function of An Garda Síochána concerning child abuse is statutorily defined: to preserve life, vindicate the human rights of the individual, and prevent, investigate, and detect criminal offenses.¹⁰ This function is carried out in tandem with Tusla under strictly defined joint protocols, which require an effective flow of relevant information between the agencies to ensure that the safety and welfare of the child are promoted.¹⁰

Furthermore, the Garda Victim Charter explicitly states that it is the profound duty of An Garda

Síochána to "investigate fully all reports of sexual crime and child abuse, without exception".¹² The insistence by the Galway City Superintendent of Community Engagement that "Reports of this nature cannot be accepted via email" represents a catastrophic misprioritization of procedural preference over statutory obligation.¹ While law enforcement standard operating procedures inherently favor in-person, signed statements to satisfy the Judges' Rules for evidentiary admissibility in future court proceedings¹³, administrative preferences regarding the *format* of evidence cannot supersede the paramount objective of the *Children First Act*, which is the immediate cessation of harm to a child.¹⁰

By ignoring the substantive intelligence provided in the email—which included specific vehicle license plate fragments, location data, and behavioral descriptions—due solely to the medium of its delivery, the Gardaí failed to initiate the investigative apparatus required by law. The failure to accept the report via email, log the intelligence on the PULSE system, and cross-reference the vehicle registration to conduct a welfare check constitutes an abrogation of their duty as mandated persons and law enforcement officers.

2.2 The Criminal Justice (Withholding of Information) Act 2012

The refusal to act on the digital report also creates a profound legal paradox when analyzed against the *Criminal Justice (Withholding of Information on Offences against Children and Vulnerable Persons) Act 2012*.¹⁵ This aggressive piece of legislation makes it a criminal offense for any person who knows or believes that a scheduled offense has been committed against a child to fail to disclose that information to An Garda Síochána as soon as it is practicable to do so.⁶

The claimant, witnessing an act of physical violence against a child, fulfilled their strict legal obligation under the 2012 Act by disclosing the information to the authorities in writing. The legislation does not mandate that this disclosure must occur within the physical confines of a police station. By flatly refusing to accept or log the disclosure because it was submitted digitally, the Gardaí theoretically placed the claimant in ongoing legal jeopardy while simultaneously failing in their own reciprocal, fundamental duty to receive and process intelligence regarding crimes against children. The State cannot logically or legally criminalize the withholding of vital information while simultaneously erecting insurmountable, discriminatory, and arbitrary barriers to the reception of that exact information.

2.3 Legal Consequences for Ignoring Garda Misconduct

Beyond the suppression of child abuse reports, the claimant's communications detail persistent, alarming allegations of Garda misconduct. These include the intimidation of an elderly relative at their private residence, unauthorized presence and harassment on private property, the refusal of officers to provide identifying badge numbers upon request, and the alleged malicious falsification of PULSE intelligence files.¹ Ignoring these reports constitutes a severe failure under both internal disciplinary regulations and broader, independent statutory oversight mechanisms.

Under the *Garda Síochána (Discipline) Regulations 2007*, breaches of discipline—such as discourtesy, failure to identify oneself, abuse of authority, or falsehood—mandate investigation

and carry penalties ranging from advice and warnings to dismissal.¹⁹ The refusal of an officer answering the Mill Street landline to identify himself directly violates the Garda Code of Ethics, which mandates that members openly display and provide required identification.¹ More critically, the landscape of police accountability has been redefined by the *Policing, Security and Community Safety Act 2024*.²⁰ Under Section 204 of this Act, the Garda Commissioner (or delegated senior management) has a strict statutory duty to notify the Police Ombudsman (Fiosrú) as soon as practicable upon becoming aware of an "incident of concern" relating to a member of Garda personnel.²¹ Deliberately filtering out or ignoring complaints of intimidation and misconduct simply because they are submitted via email by a disabled citizen serves to artificially suppress the reporting of these incidents. This creates a "blue wall" of silence, insulating officers from the independent oversight mandated by the 2024 Act and directly violating the principles of transparency and accountability required in a modern democratic society.²²

3. The Equal Status Act and Remote Accommodations for Victims of Crime

The refusal by An Garda Síochána to process reports via electronic means (such as email, Microsoft Teams, or dedicated online portals) is not merely an archaic procedural dispute; it is a profound violation of established disability rights law. The claimant is fiercely protected by the *Equal Status Acts 2000-2018*, which strictly prohibit discrimination in the provision of goods and services, explicitly including services provided by the State and public bodies.²⁴

3.1 The Statutory Threshold of Reasonable Accommodation

Section 4(1) of the *Equal Status Act 2000* is the legislative anchor for the claimant's demands. It defines discrimination as including "a refusal or failure by the provider of a service to do all that is reasonable to accommodate the needs of a person with a disability by providing special treatment or facilities, if without such special treatment or facilities it would be impossible or unduly difficult for the person to avail himself or herself of the service".²⁶

The definition of disability under the Act is comprehensive and progressive. It explicitly includes "a condition, disease or illness which affects a person's thought processes, perception of reality, emotions or judgment or which results in disturbed behaviour".²⁹ This definition definitively encompasses the claimant's documented Complex Post-Traumatic Stress Disorder (C-PTSD).¹ Furthermore, the Act protects individuals with a history of disability or those imputed with a disability, neutralizing any arguments that the claimant's historical (though disputed) psychiatric labels invalidate their current rights.²⁹

An Garda Síochána is unequivocally a service provider bound by the stipulations of this Act.³⁰ The claimant has provided incontrovertible documentary evidence that their disabilities render physical attendance at a Garda station not just "unduly difficult," but psychologically and medically dangerous. Confinement in a police station triggers severe autonomic hyperarousal, claustrophobia, and violently uncontrollable iatrogenic myoclonic seizures (G25.3).¹

Furthermore, the claimant associates specific, permanent physical trauma—including a skull injury and a fractured leg—with prior in-person interactions at Mill Street Garda Station, creating an insurmountable trauma barrier to physical attendance.¹

3.2 The Viability and Necessity of Electronic Communication

Refusing to accommodate a disabled victim of crime via remote communication is legally unjustifiable in the modern technological landscape. The Irish Human Rights and Equality Commission (IHREC) guidelines and the UN Convention on the Rights of Persons with Disabilities (UNCRPD) emphasize that reasonable accommodation requires entering into a proactive dialogue with the individual to determine the most effective adaptation.³⁰

The rigid demand by the Superintendent that the claimant must "attend in person" represents a blanket policy that fails the legal test of individualized assessment.¹ Section 4(2) of the Equal Status Act stipulates that a refusal to provide accommodation is only deemed reasonable if it would give rise to a cost, other than a nominal cost, to the service provider.²⁶ Providing a secure email channel, establishing a Microsoft Teams link for a virtual interview, or permitting the submission of sworn digital affidavits imposes absolutely no "disproportionate burden" or financial cost on a heavily funded state apparatus like An Garda Síochána.²⁶

Indeed, international jurisprudence and European Union directives strongly support the claimant's position. The EU Victims Rights Directive 2012/29/EU requires that victims be treated in a tailored, professional, and non-discriminatory manner.³² Directives on the digitalization of justice explicitly encourage the use of remote communication technology—including videoconferencing—to protect vulnerable witnesses, minimize secondary trauma, and ensure effective access to justice for persons with disabilities on an equal basis with others.³³

By failing to utilize its designated Access Officers—roles specifically created under the Disability Act to coordinate assistance for persons with disabilities³⁶—to facilitate this digital accommodation, An Garda Síochána is effectively weaponizing the claimant's disability. This refusal ensures that their reports of child abuse and Garda corruption remain uninvestigated, systematically disenfranchising them from the protection of the criminal justice system.³⁸

4. Comprehensive Data Access, Architecture, and Audit Trail Retrieval

To substantiate claims of targeted harassment, the creation of false psychiatric profiles, and the systematic suppression of valid crime reports, the claimant requires comprehensive, unredacted access to An Garda Síochána's internal databases. This access is governed by complex intersecting frameworks: the *Data Protection Act 2018*, which transposes the General Data Protection Regulation (GDPR) and the Law Enforcement Directive (LED) into Irish law, and specific statutory custody regulations.¹

4.1 Navigating the LED and the "Attention and Complaints" Fallacy

Standard Subject Access Requests (SARs) submitted to police forces are frequently met with

heavy redactions or blanket refusals. Data controllers routinely rely on Section 94 of the *Data Protection Act 2018* (implementing the LED), which allows restrictions to access if releasing the data would prejudice the prevention, detection, investigation, or prosecution of criminal offenses.⁴²

However, as meticulously established in the *Garda Corruption and Data Access.pdf* analysis, the claimant's interactions are largely recorded under the "Attention and Complaints" PULSE category.¹ The Garda Inspectorate has heavily criticized this exact category, revealing that it is systematically misused by officers to harbor non-criminal "soft intelligence" and to bury legitimate crimes.² Because data residing in this category is fundamentally administrative rather than indicative of an active, ongoing criminal investigation into the claimant, the Section 94 LED exemption is legally fragile.

Furthermore, the "No Criminal Record" pivot is a critical lever.¹ Because the claimant has no criminal convictions and all previous interactions resulted in strike-outs or dismissals, the state's interest in secrecy diminishes significantly. The Data Protection Commission (DPC) explicitly notes that once legal matters are concluded, individuals may re-apply for their data.¹ The claimant has an absolute right under Section 91 of the 2018 Act to be provided with a communication of this personal data, the origin of the data, and the recipients to whom it has been disclosed.⁴⁴

4.2 The Critical Nature of the Digital Audit Trail

A paramount element of the claimant's data request must be the retrieval of the PULSE system's **electronic audit trail** (or access logs). The claimant alleges a multi-year campaign of character assassination, wherein false psychiatric labels (mania, psychosis, schizoaffective) have been maliciously inputted into their PULSE file and are being accessed, gossiped about, or utilized by officers to discredit them and bias subsequent interactions.¹

An audit trail is an immutable, chronological digital record showing exactly who accessed a computer system, when they accessed it, and what specific operations (read, edit, delete, invalidate) they performed.⁴⁵ The Data Protection Commission (DPC) has previously audited An Garda Síochána and reprimanded the force for failing to maintain adequate digital audit trails for CCTV and other internal systems. The DPC emphasized that under Section 77 of the 2018 Act, the force must implement rigorous measures to ensure that they can demonstrate that all access to its systems is strictly authorized and operationally justified.⁴⁸

By demanding the specific audit log of their PULSE profile, the claimant transcends the data itself and targets the *behavior* of the data controllers. This log will identify which individual officers (e.g., Garda Tighe, Garda Small, Gerard Dunne) have been viewing their file without a valid operational reason, thereby providing incontrovertible documentary evidence of unlawful surveillance, data breaching, and targeted intimidation by State actors.

4.3 Statutory Superiority of Custody Records

Independent of data protection legislation, the claimant possesses superior statutory rights to unredacted data under the *Criminal Justice Act 1984 (Treatment of Persons in Custody in Garda Síochána Stations) Regulations 1987*.¹ Regulation 24 provides an unqualified right for a

person to be supplied with a copy of their custody record. This document aggregates all necessary identifiers: the unredacted names of the arresting officers, the Member in Charge, the specific reasons for detention, and the signed Property Logs ("bags").¹ Utilizing this statutory instrument circumvents the bureaucratic redaction algorithms applied to standard GDPR requests, forcing the disclosure of the identities necessary for civil litigation regarding assault or false imprisonment.

5. Formal Legal and Administrative Requests

The following formal requests have been meticulously drafted for the claimant's immediate deployment. They synthesize the clinical realities, the history of unaccommodated trauma, the rigid statutory reporting obligations, and the rigorous data protection frameworks established in the preceding analysis. These drafts are designed to legally corner the administrative apparatus of An Garda Síochána, forcing compliance or creating an actionable paper trail of discrimination and statutory failure.

5.1 Draft 1: Formal Request for Accommodations and Notice of Statutory Failure

To: Superintendent, Community Engagement, Galway City Division / Garda Access Officer

CC: The Data Protection Commission (DPC); Fiosrú (Office of the Police Ombudsman); Irish Human Rights and Equality Commission (IHREC); Tusla (Child and Family Agency)

Subject: FORMAL NOTICE: Demand for Reasonable Accommodation under the Equal Status Acts 2000-2018 & Notice of Failure to Act on Statutory Mandated Reports

A Chara,

I am writing to formally invoke my entrenched statutory rights under Section 4 of the Equal Status Acts 2000-2018, the Disability Act 2005, and the UN Convention on the Rights of Persons with Disabilities (UNCRPD). This correspondence serves as a legally binding demand for reasonable accommodation in all my current and future interactions with An Garda Síochána.

Furthermore, this letter addresses your severe, ongoing failure to process my reports of serious criminal offenses—specifically physical child abuse and Garda misconduct—due to my disability-related inability to attend a Garda station in person.

1. Declaration of Disability and Clinical Baseline

I am a person with a disability as defined under Section 2 of the Equal Status Act 2000. As detailed in the attached medical and administrative documentation (*Disability Allowance Application Assistance.pdf*), my conditions are organic, trauma-based, permanent, and objectively verified. They include:

- Complex Post-Traumatic Stress Disorder (C-PTSD) (ICD-10 F43.12)
- Iatrogenic Myoclonic Seizures (ICD-10 G25.3)
- Cervicothoracic Spinal Spondylosis (ICD-10 M47.813)
- Temporomandibular Joint (TMJ) Internal Derangement (ICD-10 M26.61)

These conditions manifest in chronic mechanical pain, hyperarousal, and physical nociceptive reflexes (such as involuntary facial splinting). Crucially, my C-PTSD and subsequent neurological injuries are directly, inextricably linked to previous instances of physical trauma sustained during in-person interactions with An Garda Síochána, specifically at Mill Street Garda Station (including a documented skull injury on 03/06/2019 and a fractured bone on 25/11/2022, as cross-referenced in my *Disclosure* file).

Consequently, forcing me to voluntarily enter a police confinement facility is medically contraindicated and physically dangerous. It predictably triggers severe claustrophobia, panic attacks, and violent myoclonic seizures.

2. Demand for Reasonable Accommodation

Section 4(1) of the Equal Status Act mandates that a service provider must do all that is reasonable to accommodate the needs of a person with a disability if accessing the service normally would be impossible or unduly difficult.

To date, you have flagrantly refused to accept my witness statements and crime reports via email, continually demanding that I "attend in person" (e.g., correspondence dated April 16, 2026). This rigid, blanket policy fails to account for my complex trauma and constitutes direct, actionable discrimination. Providing a secure email channel, establishing a Microsoft Teams link for remote interviewing, or allowing for the submission of digital sworn affidavits imposes absolutely no "disproportionate burden" or nominal cost upon the State.

I hereby formally request that all future communications, witness statements, and crime reports be facilitated exclusively via secure email, online video conferencing (e.g., MS Teams), or postal correspondence.

3. Failure to Act on Mandated Reports and Garda Misconduct

By erecting this discriminatory administrative barrier, An Garda Síochána has actively suppressed credible reports of severe crimes. Specifically, on April 16, 2026, I reported witnessing physical child abuse in a vehicle (license 161-D-1214782 or 214782). I provided this vital intelligence in my capacity as a registered teacher and mandated person.

Under the *Children First Act 2015*, Gardaí are mandated persons with an absolute statutory duty to investigate allegations of child abuse. Furthermore, the *Criminal Justice (Withholding of Information on Offences against Children and Vulnerable Persons) Act 2012* makes it a criminal offense not to disclose such information. I fulfilled my strict legal duty by disclosing the crime to you. Your refusal to log or investigate this crime simply because the report was transmitted via email represents a gross dereliction of your statutory duty to protect children and a direct violation of the Garda Victim Charter.

Additionally, you have continually ignored my detailed reports of ongoing Garda misconduct, including the intimidation of my grandmother at 2 Willow Park, unauthorized property access, and officers explicitly refusing to provide identifying badge numbers over the phone (e.g., Mill Street landline call on June 30, 2025). Under Section 204 of the *Policing, Security and Community Safety Act 2024*, there is a strict, undeniable legal duty to forward incidents of concern to the Police Ombudsman.

Conclusion and Required Actions

If you refuse to grant this reasonable accommodation within 14 days, and continue to reject my crime reports via digital means, I will escalate this matter aggressively. I will file a formal

complaint with the Workplace Relations Commission (WRC) for discrimination under the Equal Status Act, submit a comprehensive complaint to Fiosrú regarding your failure to investigate reported child abuse and police misconduct, and seek the legal intervention of IHREC.

I await your prompt, written confirmation that my requested accommodations have been implemented on my PULSE profile and that an investigating officer has been assigned to my child abuse report via digital correspondence.

Yours faithfully,

5.2 Draft 2: Comprehensive Data Subject Access Request and Rectification Demand

To: Data Protection Officer, An Garda Síochána / National Vetting Bureau

CC: The Data Protection Commission (DPC)

Subject: Comprehensive Subject Access Request (GDPR & Law Enforcement Directive) – Right of Access, Audit Trails, and Rectification

A Chara,

Pursuant to Article 15 of the General Data Protection Regulation (GDPR) and Section 91 of the Data Protection Act 2018 (incorporating the Law Enforcement Directive), I am writing to formally request a complete and exhaustive copy of all personal data, incident records, intelligence records, and system metadata relating to me, processed by or on behalf of An Garda Síochána.

Applicant Details:

- **Name:**
- **Date of Birth:**
- **Address:**
- **PPSN / Identification:** [Attached]

This request encompasses all data held locally at Galway Divisional stations (specifically Mill Street and Salthill) and centrally on the PULSE system, CAD (Computer Aided Dispatch), and internal email servers.

Specific Information Requested:

1. Complete PULSE Records (Incident and Intelligence)

I require unredacted copies of all entries linked to my name, including but not limited to the 26 incidents listed in my previous disclosure log (SAR. YSESFTJ94C.24). I specifically require access to all data held under the non-crime "Attention and Complaints" category and the "Person Misadventure" category. As I have no criminal convictions, the LED exemption regarding the prejudice of active prosecutions (Section 94) does not apply to my file.

2. Electronic Audit Trails and Access Logs

In strict accordance with your obligations under Section 77 of the Data Protection Act 2018 to maintain the security, traceability, and logging of automated processing, I formally request the complete **electronic audit trail / access log** for my PULSE file. This must detail the exact date, time, location, and the unique identifying number/name of every Garda member or civilian staff member who has accessed, viewed, edited, invalidated, or appended information to my profile

between January 1, 2017, and the present date. I require this to investigate unauthorized access and the malicious sharing of "soft intelligence" regarding my person.

3. Internal Communications and Emails

I request copies of all internal Garda emails, memos, Microsoft Teams messages, and station logs that mention my name, my address (2 Willow Park), or my email addresses. This includes all correspondence between Galway City Community Engagement, the Divisional Protective Services Unit, and individual officers (including but not limited to Garda Thomas Tighe, Garda Hilda Small, and Gerard J. Dunne) regarding my reports of dangerous driving, child abuse, and my requests for disability accommodation.

4. Statutory Custody Records and "Bags" (Property Logs)

Independent of the Data Protection Act, and relying firmly upon my unqualified statutory rights under Regulation 24 of the *Criminal Justice Act 1984 (Treatment of Persons in Custody in Garda Síochána Stations) Regulations 1987*, I demand a complete, unredacted copy of my Custody Records for all historical arrests. This must explicitly include:

- The unredacted names and badge numbers of the "Member in Charge" and the arresting officers.
- The specific "Reasons" for detention recorded (Regulation 8).
- The complete, signed Property Logs ("Bags") detailing the handling of my effects (Regulation 16).

As these are statutory documents detailing the actions of public officials exercising coercive state power, their identities do not qualify for third-party privacy redactions under Section 60 of the DPA 2018.

5. Formal Notice of Rectification (Article 16 GDPR / Section 92 DPA 2018)

I am formally placing you on notice that my file currently contains factually inaccurate, highly prejudicial, and clinically invalid psychiatric labels—including but not limited to "mania," "psychosis," "bipolar," or "schizoaffective disorder." These terms were maliciously entered based on false reports by third parties and are actively being used to discredit my reports of crime. As established by my attached clinical records (*Disability Allowance Application Assistance.pdf*), my correct medical diagnoses are Complex PTSD (F43.12), Iatrogenic Myoclonic Seizures (G25.3), and structural spinal/jaw trauma. I demand the immediate erasure of the false psychiatric intelligence markers from PULSE and their rectification to reflect my true, verified physical and neurological trauma.

Conclusion

Should you attempt to apply blanket redactions, misuse the "litigation privilege" exemption to hide officer identities, or refuse the disclosure of the requested audit trails, I will immediately escalate the matter to the Data Protection Commission (DPC) and petition for an on-site inspection of Mill Street's digital architecture.

I look forward to receiving this data in a structured, commonly used electronic format within the statutory 30-day timeframe.

Yours faithfully,

Works cited

1. Disability Allowance Application Assistance.pdf
2. Report of the Garda Síochána Inspectorate. Crime investigation. - Drugs and Alcohol, accessed April 20, 2026, <https://www.drugsandalcohol.ie/22967/>
3. Crime-Investigation-Full-Report.pdf - Garda Síochána Inspectorate, accessed April 20, 2026, <https://www.gsinsp.ie/wp-content/uploads/2019/07/Crime-Investigation-Full-Report.pdf>
4. Crime Investigation - CORE, accessed April 20, 2026, <https://core.ac.uk/download/pdf/34722630.pdf>
5. The reporting of child abuse and neglect in Ireland in an international context - University of Galway Research Repository, accessed April 20, 2026, <https://researchrepository.universityofgalway.ie/bitstreams/fb9f37e1-a714-4953-8c9e-cc72ae2ba39e/download>
6. Mandatory Reporting of Adult Disclosures of Child Sexual Abuse: Ireland's Policy and Legal Quandary - PublicPolicy.ie, accessed April 20, 2026, <https://publicpolicy.ie/papers/mandatory-reporting-of-adult-disclosures-of-child-sexual-abuse-irelands-policy-and-legal-quandary/>
7. What is Mandated Reporting? - Garda, accessed April 20, 2026, <https://www.garda.ie/en/about-us/organised-serious-crime/garda-national-protective-services-bureau-gnpsb-/garda-national-child-protection-unit/what-is-mandated-reporting-.html>
8. What are the legal obligations of a Mandated Person? Tusla - Child and Family Agency, accessed April 20, 2026, <https://www.tusla.ie/children-first/mandated-persons/what-are-the-legal-obligations-of-a-mandated-person/>
9. Article- Mandated Persons info-CYPSC.docx - Children and Young People's Services Committees, accessed April 20, 2026, https://www.cypsc.ie/_fileupload/Mayo%20CYPSC/Article-%20Mandated%20Persons%20info-CYPSC.docx
10. Joint Working Protocol for An Garda Síochána/ Tusla - Child and Family Agency Liaison, accessed April 20, 2026, https://www.tusla.ie/uploads/content/CF_Joint_Protocol.pdf
11. Joint Working Protocol - for An Garda Síochána/ Tusla - Child and Family Agency Liaison, accessed April 20, 2026, <https://www.garda.ie/en/about-us/publications/policy-documents/joint-working-protocol-for-ags-and-tusla.pdf>
12. What will happen when the Gardaí arrive? - Garda, accessed April 20, 2026, <https://www.garda.ie/en/crime/sexual-crime/what-will-happen-when-the-gardai-arrive-.html>
13. Statements from suspects - Citizens Information, accessed April 20, 2026, <https://www.citizensinformation.ie/en/justice/arrests/statements-from-suspects/>
14. Documentary & Electronic Evidence - Law Reform Commission, accessed April 20, 2026, https://www.lawreform.ie/_fileupload/consultation%20papers/cpdocumentaryandelectronicevidence.pdf

15. Criminal Justice (Withholding of Information on Offences against Children and Vulnerable Persons) Act 2012 - Revised Acts, accessed April 20, 2026, <https://revisedacts.lawreform.ie/eli/2012/act/24/revised/en/html>
16. Criminal Justice (Withholding of Information on Offences against Children and Vulnerable Persons) Act 2012 - Irish Statute Book, accessed April 20, 2026, <https://www.irishstatutebook.ie/eli/2012/act/24/enacted/en/print>
17. Criminal Justice (Withholding of Information on Offences Against Children and Vulnerable Persons) Act 2012 - Law.Cornell.Edu, accessed April 20, 2026, https://www.law.cornell.edu/gender-justice/resource/criminal_justice_%28withholding_of_information_on_offences_against_children_and_vulnerable_persons%29
18. PART 7: - Church of Ireland, accessed April 20, 2026, <https://www.churchofireland.org/cmsfiles/pdf/Information/policy/safeguarding/roi/Child/SGC-Part7.pdf>
19. Internal Affairs - - Garda, accessed April 20, 2026, <https://www.garda.ie/en/about-us/our-departments/governance-and-accountability/internal-affairs/>
20. Policing, Security and Community Safety Act 2024 - Oireachtas.ie, accessed April 20, 2026, <https://www.oireachtas.ie/en/bills/bill/2023/3/>
21. Policing, Security and Community Safety Act 2024, Section 193 - Irish Statute Book, accessed April 20, 2026, <https://www.irishstatutebook.ie/eli/2024/act/1/section/193>
22. ICCL statement on the Policing, Security and Community Safety Act 2024, accessed April 20, 2026, <https://www.iccl.ie/police-justice-reform/iccl-statement-on-the-policing-security-and-community-safety-act-2024/>
23. Policing, Security and Community Safety Act 2024, Section 204 - Irish Statute Book, accessed April 20, 2026, <https://www.irishstatutebook.ie/eli/2024/act/1/section/204/enacted/en/html>
24. EQUAL STATUS ACT, 2000 ————— ARRANGEMENT O - Irish Statute Book, accessed April 20, 2026, <https://www.irishstatutebook.ie/eli/2000/act/8/enacted/en/pdf>
25. Ireland 2021 - Migration Policy Group, accessed April 20, 2026, https://www.migpolgroup.com/wp-content/uploads/2022/12/2021-IE-Country-report-ND_final-for-WEB.pdf
26. Equal Status Act, 2000, Section 4 - Irish Statute Book, accessed April 20, 2026, <https://www.irishstatutebook.ie/eli/2000/act/8/section/4/enacted/en/html>
27. accessed April 20, 2026, [https://www.irishstatutebook.ie/eli/2000/act/8/section/4/enacted/en/html#:~:text=\(4\)%20Where%20a%20person%20has,harm%20does%20not%20constitute%20discrimination.](https://www.irishstatutebook.ie/eli/2000/act/8/section/4/enacted/en/html#:~:text=(4)%20Where%20a%20person%20has,harm%20does%20not%20constitute%20discrimination.)
28. Disability discrimination and the right to reasonable accommodation under the Equal Status Acts - IHREC, accessed April 20, 2026, <https://www.ihrec.ie/factsheets/disability-discrimination-and-the-right-to-reasonable-accommodation-under-the-equal-status-acts>
29. The Equal Status Act 2000 - A Brief Guide - for Students with Disabilities. -

- AHEAD, accessed April 20, 2026,
<https://www.ahead.ie/userfiles/files/shop/free/EqualStatusAct2000factsheet.pdf>
30. Download now - FLAC, accessed April 20, 2026,
https://www.flac.ie/assets/files/docx/flac_equality_review_resource_231121.docx
 31. Disability and Work - IHREC, accessed April 20, 2026,
<https://www.ihrec.ie/your-rights/disability/work>
 32. Reporting a crime: FAQs - - Garda, accessed April 20, 2026,
<https://www.garda.ie/en/victim-services/reporting-a-crime-faqs/>
 33. REPORT ON THE PRACTICAL IMPLEMENTATION OF THE EU VICTIMS' RIGHTS DIRECTIVE 2018-2024, accessed April 20, 2026,
https://victim-support.eu/wp-content/files_mf/1753275388ReportonthePracticalImplementationoftheEUVictimsRightsDirective20182024.pdf
 34. IMMC.COM%282023%29786%20final.ENG.xhtml.1_EN_ACT_part1_v3.docx - EUR-Lex, accessed April 20, 2026,
<https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:52023DC0786>
 35. UNCRPD IMPLEMENTATION - European Union of the Deaf, accessed April 20, 2026, https://www.eud.eu/wp-content/uploads/2022/02/UNCRPD_Book_V3.pdf
 36. Useful contact numbers - Garda, accessed April 20, 2026,
<https://www.garda.ie/en/contact-us/useful-contact-numbers/>
 37. Accessibility – Garda Síochána Inspectorate, accessed April 20, 2026,
<https://www.gsinsp.ie/accessibility/>
 38. access-to-justice-for-people-with-disabilities-as-victims-of-crime-in-ireland-Word.doc, accessed April 20, 2026,
<https://nda.ie/uploads/publications/access-to-justice-for-people-with-disabilities-as-victims-of-crime-in-ireland-Word.doc>
 39. Access to Justice for People with Disabilities as Victims of Crime in Ireland - University College Cork, accessed April 20, 2026,
<https://www.ucc.ie/en/media/academic/law/ccjhr/publicationsseptember2018/AccessToJusticeforPeoplewithDisabilitiesasVictimsofCrimeinIreland2012.pdf>
 40. Data Protection Act 2018 - Revised Acts - Law Reform Commission, accessed April 20, 2026, <https://revisedacts.lawreform.ie/eli/2018/act/7/revised/en/html>
 41. Data protection laws in Ireland, accessed April 20, 2026,
<https://www.dlapiperdataprotection.com/?t=law&c=IE>
 42. Law Enforcement Directive (LED) Access Request - Rights and Restrictions, accessed April 20, 2026,
<https://dataprotection.ie/en/dpc-guidance/case-studies/law-enforcement-directive/law-enforcement-directive-led-access-request-rights-and-restrictions>
 43. Department of Social Protection's Privacy Statement - Government of Ireland, accessed April 20, 2026,
<https://www.gov.ie/en/department-of-social-protection/organisation-information/department-of-social-protections-privacy-statement/>
 44. Data Protection Act 2018, Section 91 - Irish Statute Book, accessed April 20, 2026,
<https://www.irishstatutebook.ie/eli/2018/act/7/section/91/enacted/en/html>
 45. DATA PROTECTION INVESTIGATION IN THE HOSPITALS SECTOR A REPORT BY THE SPECIAL INVESTIGATIONS UNIT OF THE DATA PROTECTION COMMIS,

accessed April 20, 2026,

https://www.dataprotection.ie/sites/default/files/uploads/2018-12/DPC%20-%20Hospitals%20Sector%20Overall%20Report%20_0.pdf

46. S.I. No. 216/2024 - Garda Síochána (Recording Devices) Act 2023 (Code of Practice) Order 2024 - Irish Statute Book, accessed April 20, 2026,
<https://www.irishstatutebook.ie/eli/2024/si/216/made/en/print>
47. An Garda Síochána - The Journal, accessed April 20, 2026,
https://cdn.thejournal.ie/media/2013/05/report_to_minister_on_fcps.pdf
48. Decision of the Data Protection Commission under Section 124 of the Data Protection Act 2018 in the Case of 01/SIU/2018 Own-Voli, accessed April 20, 2026,
https://www.dataprotection.ie/sites/default/files/uploads/2021-02/23.08.2019_Decision_IN-01-SIU-2018_AnGardaS%C3%ADoch%C3%A1na.pdf